IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FOURTH DISTRICT

PEOPLE'S TRUST INSURANCE COMPANY,
Petitioner,

vs.

ELVIN HERNANDEZ and JEANNETTE HERNANDEZ,
Respondents.
_____/

CASE NO.: 4D2024-_____
L.T. NO.: CACE-22-014483

PETITION FOR WRIT OF MANDAMUS

People's Trust Insurance Company requests that the Court enter a writ of mandamus compelling the circuit court judge to carry out his mandatory, nondiscretionary duty to enter judgment on a final arbitration decision in accordance with section 44.103, Florida Statutes, and Florida Rule of Civil Procedure 1.820.

BASIS FOR INVOKING THE JURISDICTION OF THE COURT

Article V, Section 4(b) of the Florida Constitution and Florida Rules of Appellate Procedure 9.030(b)(3) and 9.100 provide the Court with jurisdiction to issue writs of mandamus. The writ is warranted "when a

lower court fails to perform an indisputable, nondiscretionary ministerial duty." *Gambrel v. Sampson*, 330 So. 3d 114, 116 (Fla. 2d DCA 2021).

This petition concerns the circuit court's December 9, 2024 order denying People's Trust's motion for entry of judgment on a court-ordered nonbinding arbitration decision. (App.71). Because the Hernandezes did not file a proper rejection of that decision and request for trial de novo within the required timeframe, Rule 1.820 and section 44.103 made entry of judgment mandatory; it was a nondiscretionary ministerial duty. Fla. R. Civ. P. 1.820(h) ("If a notice of rejection of the arbitration decision and request for trial is not made within 20 days of service on the parties of the decision, the decision must be referred to the presiding judge, who must enter such orders and judgments as may be required to carry out the terms of the decision as provided by section 44.103(5), Florida Statutes."); § 44.103(5), Fla. Stat. (2024) ("If no request for trial de novo is made within the time provided, the decision shall be referred to the presiding judge in the case who shall enter such orders and judgments as are required to carry out the terms of the decision . . . ."); *United Auto. Ins. Co. v. Ortiz*, 931 So. 2d 1025, 1026 (Fla. 4th DCA 2006) ("Entry of a judgment in accordance with

an arbitrator's decision is a ministerial act. The trial court has no discretion to deny such a request.").

The Court should therefore compel compliance with that nondiscretionary duty by issuing a writ of mandamus. *Gambrel*, 330 So. 3d at 116 ("Mandamus has frequently been invoked to compel courts to enter judgments confirming arbitration awards when there is no discretion to do otherwise."); see also *Johnson v. Levine*, 736 So. 2d 1235, 1238 (Fla. 4th DCA 1999) (confirming its "jurisdiction by way of mandamus" to compel a trial court's compliance with the ministerial duty to enter judgment on an arbitration award).

FACTS ON WHICH THE PETITIONER RELIES

The Hernandezes sued People's Trust for benefits they claim are owed under a homeowner's insurance policy. (App.3–7). The trial court eventually ordered the case to non-binding arbitration under section 44.103, Florida Statutes, and Florida Rule of Civil Procedure 1.820. (App.9–11). After describing the relevant procedures, the order specified that the "arbitration decision shall be final if a request or trial de novo is not filed within the time provided by the rules promulgated by the Supreme Court." (App.10–11). Citing Florida Rule of Civil Procedure 1.820(h), the

order continued: “If no request for trial de novo is made within the time provided, the decision shall be referred to the presiding judge, who shall enter such orders and judgments as may be requested to carry out the terms of decision.” (App.11).

The arbitration took place on May 16, 2024, then the arbitrator entered his decision on July 8, 2024. (App.12, 13). That same day, the Hernandezes filed a one-page document styled “Plaintiff’s Motion for Trial De Novo.” (App.13). In its entirety, the document stated:

> PLAINTIFF’S MOTION FOR TRIAL DE NOVO
> COMES NOW, Plaintiffs, ELVIN HERNANDEZ and JEANNETTE HERNANDEZ, by and through the undersigned counsel, and hereby file this Motion for Trial De Novo, and in support thereof states as follows:
> 1. This action was arbitrated in non-binding arbitration on May 16, 2024.
> 2. On July 8, 2024, the Arbitrator entered a decision on the non-binding arbitration.
> 3. Pursuant to Florida Rule of Civil Procedure 1.820(h), Plaintiffs request a Trial de Novo by the Court.
> WHEREFORE, Plaintiffs, ELVIN HERNANDEZ and JEANNETTE HERNANDEZ respectfully request for this Honorable Court to enter an Order referring the above-styled case to trial.
> (App.13).

The Hernandezes did not take any further action within rule 1.820(h)’s 20-day timeframe, so People’s Trust filed a motion for entry of judgment on the arbitration decision. (App.14–16, 20–64). The motion

explained that the Hernandezes' filing was invalid because it did not comply with rule 1.820(h) as it had been amended effective July 1, 2024. (App.20–22). Specifically, the rule requires that an aggrieved party "must file a notice of rejection of the arbitration decision and request for trial in the same document," then further states, "No action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision." (App.21–22) (quoting Fla. R. Civ. P. 1.820(h)).

The Hernandezes filed a request for trial, but they did not include "in the same document" a notice of rejection of the arbitration decision. (App.22). As People's Trust explained, this Court in *Lawnwood v. Rouse* "rejected the application of a 'substantial compliance' standard when reviewing adherence to Rule 1.820(h)'s requirements." (App.23–24) (citing *Lawnwood Med. Ctr., Inc. v. Rouse*, 394 So. 3d 51 (Fla. 4th DCA 2024)). *Lawnwood* requires "bright-line" adherence to rule 1.820(h), and the Florida Supreme Court's decision to amend that rule—and to insert the controlling language—cannot be deemed inconsequential: "it was clearly the intent of the Florida Supreme Court to specifically change the language of the rule to adopt and clarify the only method by which an arbitration decision may be rejected." (App.23).

In response, the Hernandezes asked the trial judge to allow for substantial compliance with the rule. (App.66). Because section 44.103 only imposes a time limit on filing a request for trial de novo, without specifying any procedure or form, the Hernandezes contended that their timely filing "put[] the parties, all parties, including the court, on notice that we were not in agreement with the arbitration award. (App.66–67); see also (App.81) ("And I believe, Your Honor, in our position, Florida Statute 44.103 specifically states that its within the time provided by the rules promulgated by the Supreme Court, and it doesn't specify the manner.").

Looking to the Hernandezes' statutory argument, the trial judge acknowledged that statutes may govern substantive rights, but rules dictate procedures for implementing them:

> THE COURT: In terms of the statute, I mean, don't the Rules of Procedure – doesn't the Supreme Court enact rules to apply statutes to the practice of law? So in other words, yes, the Legislature says you have to request the trial and the Supreme Court says this is how you do it.

(App.80–81). He then took the matter under advisement, but the judge ultimately denied entry of judgment with an order stating: "Defendant's Motion is DENIED pursuant to *Vitesse, Inc. v. MAPL Associates LLC*, 358 So. 3d 437 (Fla. 4th DCA 2023)." (App. 71).

NATURE OF THE RELIEF SOUGHT

People's Trust Insurance Company requests that the Court grant this petition and issue a writ of mandamus compelling the circuit court to enter judgment on the July 8, 2024 arbitration decision.

ARGUMENT IN SUPPORT OF THE PETITION

The trial judge had a nondiscretionary ministerial duty to enter judgment on the arbitration decision but failed to do so. This Court should issue a writ of mandamus compelling that act because: (I) the Hernandezes failed to file a compliant "notice of rejection of the arbitration decision and request for trial," so Florida Rule of Civil Procedure 1.820(h) and section 44.103, Florida Statutes, require entry of judgment; and (II) the trial court incorrectly used *Vitesse, Inc. v. MAPL Associates LLC*, 358 So. 3d 437 (Fla. 4th DCA 2023) to forgive the Hernandezes' noncompliance because (a) this Court, sitting en banc, has receded from *Vitesse*, (b) *Vitesse* has been superseded by the governing rule amendment, and (c) *Vitesse* is factually distinguishable.

I. The Hernandezes did not validly reject the arbitration decision, so section 44.103, Florida Statutes, and Florida Rule of Civil Procedure 1.820(h) required the trial judge to enter judgment on it as a nondiscretionary ministerial duty.

Arbitration is a "preferred method of dispute resolution," and in furtherance of that penchant, section 44.103 allows a trial court to refer "any contested civil action" to nonbinding arbitration. *United Auto. Ins. Co. v. Ortiz*, 931 So. 2d 1025, 1026 (Fla. 4th DCA 2006); § 44.103(2), Fla. Stat. (2024). Once referred, "the entire controversy, including liability, damages and coverage, [is] subject to determination by the arbitrator." *Ortiz*, 931 So. 2d at 1026.

Following arbitration, the arbitrator must serve the parties with a written decision. § 44.103(5); Fla. R. Civ. P. 1.820(g)(3). If any party is dissatisfied with the result, the party "must file a notice of rejection of the arbitration decision and request for trial in the same document," and "[n]o action or inaction by any party, other than the filing of the notice," is effective to reject it:

> To reject the arbitration decision, within 20 days of service of the arbitrator('s)(s') written decision, any party must file a notice of rejection of the arbitration decision and request for trial in the same document. No action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision.

Fla. R. Civ. P. 1.820(h).

If the decision is not validly rejected within twenty days, it becomes final, and the presiding judge is required to enter judgment on it:

> If a notice of rejection of the arbitration decision and request for trial is not made within 20 days of service on the parties of the decision, the decision must be referred to the presiding judge, who must enter such orders and judgments as may be required to carry out the terms of the decision as provided by section 44.103(5), Florida Statutes.

Id. Section 44.103 similarly states:

> An arbitration decision shall be final if a request for a trial de novo is not filed within the time provided by rules promulgated by the Supreme Court. . . . If no request for trial de novo is made within the time provided, the decision shall be referred to the presiding judge in the case who shall enter such orders and judgments as are required to carry out the terms of the decision, which orders shall be enforceable by the contempt powers of the court, and for which judgments execution shall issue on request of a party.

§ 44.103(5).

Both the rule and statute use mandatory terms, so this Court has established: "Entry of a judgment in accordance with an arbitrator's decision is a ministerial act. The trial court has no discretion to deny such a request." *Ortiz*, 931 So. 2d at 1026 (emphasis added) (quoting *Connell v. City of Plantation*, 901 So. 2d 317, 319 (Fla. 4th DCA 2005)); see also

Broward Yachts, Inc. v. Denison, 871 So. 2d 954, 955 (Fla. 4th DCA 2004) ("This is a 'non-discretionary, mandatory duty.'" (quoting *Johnson v. Levine*, 736 So. 2d 1235, 1238 (Fla. 4th DCA 1999))).

The obligation is mandatory because, absent any valid rejection of the arbitration decision, finality exists by operation of law. § 44.103(5), Fla. Stat. The judge's only task is to give effect to that which has already occurred. *Johnson*, 736 So. 2d at 1238 ("Once a party involved in non-binding arbitration of a specific dispute under section 44.103 fails to request a trial de novo, by the express terms of the statute the award becomes final and binding.").

In this case, the Hernandezes did file a document with the court, but it was legally insufficient and therefore ineffective. Again, the rule expressly requires "a notice of rejection of the arbitration decision and request for trial in the same document." Fla. R. Civ. P. 1.820(h) (emphasis added). The Hernandezes requested a trial (albeit a trial "by the Court" when their Complaint previously demanded a jury trial), but their filing did not contain "in the same document" the required notice of rejection of the arbitration decision. (App.13). They did not comply with the rule's express requirements, and as it specifies: "No action or inaction by any party, other

than the filing of the notice, will be deemed a rejection of the arbitration decision." Fla. R. Civ. P. 1.820(h).

The Hernandezes maintain that their filing was close enough, that it expressed their intent, and that it should therefore be accepted. Rule 1.820(h)'s text, its history, and its interpretive case law disprove that contention.

Before July 1, 2024, rule 1.820(h) required an aggrieved party to "file a motion for trial," but specified no other details:

> Any party may file a motion for trial. If a motion for trial is filed by any party, any party having a third-party claim at issue at the time of arbitration may file a motion for trial within 10 days of service of the first motion for trial. If a motion for trial is not made within 20 days of service on the parties of the decision, the decision shall be referred to the presiding judge.

Fla. R. Civ. P. 1.820(h) (2007).

Given that general language, some district courts—including this Court—decided no specific form or filing was required; all that mattered was "notice" to the opposing party that the litigant desired a trial de novo. See *Nicholson-Kenny Capital Management, Inc. v. Steinberg*, 932 So. 2d 321, 324 (Fla. 4th DCA 2006) ("The filing of a pleading styled 'motion for trial' under such circumstances does not seem required, nor does the rule require that the pleading be styled 'motion for trial.' Instead, we think the

rule requires some notice to the opposing party that its adversary is rejecting an arbitration award and renewing its demand for trial, which in this case was already set.").

The Court decided *Nicholson-Kenny* in 2006, and in both 2019 and 2023, the Second District followed suit with two decisions finding various actions substantially compliant; although the acts did not strictly comply with rule 1.820, they provided adequate notice of the litigant's desire to proceed to trial. See *de Acosta v. Naples Cmty. Hosp., Inc.*, 300 So. 3d 264, 267 (Fla. 2d DCA 2019) ("While Mrs. de Acosta did not technically comply with rule 1.820(h) by filing a formal motion for trial, she substantially complied with it by filing—a mere nine days after the arbitrator's decision was rendered—her statement of facts, identification of disputed facts, and identification of issue of law."); *Beyond Billing, Inc. v. Spine & Orthopedic Ctr., P.C.*, 362 So. 3d 256, 258 (Fla. 2d DCA 2023) (finding a stipulation to extend discovery deadlines sufficient because "[a] party substantially complies with the rule by clearly indicating its desire to proceed to trial within the applicable twenty-day period, even if it does not file a document specifically styled as a motion for trial de novo").

But after those rulings, this Court sat en banc to recede from *Nicholson-Kenny* in *Lawnwood Med. Ctr., Inc. v. Rouse*, 394 So. 3d 51 (Fla. 4th DCA 2024). Strictly construing the plain text of both section 44.103(5) and rule 1.820(h), the *Lawnwood* Court found nothing in either of them that would allow for the "substantial compliance" test courts previously condoned—a test it labeled as "non-statutory, non-rule-based," and otherwise unauthorized. *Id.* at 58; see *id.* at 60 ("We recede from Nicholson-Kenny because that precedent clearly conflicts with section 44.103(5) and rule 1.820(h) . . . .").

The Court further deemed the substantial-compliance test unworkable because it "necessarily requires a case-by-case determination of what actions—or combination of actions—should reasonably be interpreted as 'some notice' to the opposing party that its adversary is rejecting an arbitration award and renewing its demand for trial." *Id.* at 61. "The myriad possible number of actions, or combinations of actions, likely would provide no predictability or consistency at either the trial or appellate levels. Instead, the likely result would be a patchwork of subjective rulings on whether the opposing party should have been on 'some notice' that its

adversary is rejecting an arbitration award and renewing its demand for trial." *Id.*

The Court therefore held it would strictly adhere to rule 1.820(h)'s text by imposing "a bright-line and easy-to-follow requirement," not only because the rule's language dictates that result, but also because any contrary allowance prevents predictability and consistency in the law. *Id.* at 62.

The Court issued *Lawnwood* on July 3, 2024, and contemporaneous with that decision, the Florida Supreme Court amended rule 1.820(h) effective July 1, 2024. Replacing the old rule's generalized language, the supreme court specified how parties may reject an arbitration decision and, equally important, how they may not:

> To reject the arbitration decision, within 20 days of service of the arbitrator('s)(s') written decision, any party must file a notice of rejection of the arbitration decision and request for trial in the same document. No action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision.

Fla. R. Civ. P. 1.820(h) (2024) (emphasis added). Per the italicized text, a filed notice must reject the arbitration decision and request trial "in the same document." And per the underlined text, no other action or inaction will be deemed sufficient.

The change is noteworthy for several reasons. First, the Court must presume the Supreme Court knew trial and appellate courts had been applying a substantial compliance standard and intended to change it. See *Seagrave v. State*, 802 So. 2d 281, 290 (Fla. 2001) ("[T]he legislature is presumed to know the existing law when a statute is enacted, including judicial decisions on the subject concerning which it subsequently enacts a statute.") (citation and internal quotation marks omitted); *Saia Motor Freight Line, Inc. v. Reid*, 930 So. 2d 598, 599 (Fla. 2006) ("It is well settled that the Florida Rules of Civil Procedure are construed in accordance with the principles of statutory construction.").

The amendment did so, and this was not a grammatical revision or minor tweak. It was a language overhaul, and the new rule conveys the Supreme Court's desire for a single dispositive filing to control.

That makes sense. Arbitration, as a form of alternative dispute resolution, exists "to avoid the expense and delay of litigation." *Applewhite v. Sheen Fin. Res., Inc.*, 608 So. 2d 80, 83 (Fla. 4th DCA 1992). It is counterproductive to engage in arbitration, only to turn around and litigate whether subsequent conduct was a substantially compliant rejection of it. The myriad of possible fact patterns have, in the past, led to not just

litigation over those issues, but multiple appellate opinions which had to then be interpreted and applied to even more fact patterns.

A bright-line rule solves the problem, creating certainty and fairness in the law, and the Supreme Court routinely pursues those worthy goals. See, e.g., *Larson & Larson, P.A. v. TSE Indus., Inc.*, 22 So. 3d 36, 40 (Fla. 2009) ("This bright-line rule will provide certainty and reduce litigation . . . . Without such a rule, the courts would be required to make a factual determination on a case by case basis . . . ."); *Saia Motor Freight*, 930 So. 2d at 600 ("Rule 1.525 was created to establish a bright-line rule to resolve the uncertainty surrounding the timing of these posttrial motions . . . .") (alteration omitted) (citation and internal quotation marks omitted); *Wilson v. Salamon*, 923 So. 2d 363, 368 (Fla. 2005) ("We find this bright-line rule appealing in that it establishes a rule that is easy to apply and relieves the trial court and litigants of the burden of determining and guessing as to whether an activity is merely passive or active."). The Supreme Court did the same thing here, establishing a clear requirement litigants can apply and interpret without any need for judicial intervention.

In addition to those practical considerations, a bright-line test comports with the express purpose of all the rules. According to Florida

Rule of Civil Procedure 1.010: “These rules shall be construed to secure the just, speedy, and inexpensive determination of every action.” Nothing is less “just” than potentially disparate outcomes, nothing is less “speedy” than protracted litigation over a procedural dispute, and nothing is less “inexpensive” than turning non-binding arbitration into an extended dispute over whether the result has become binding.

And finally, there is the inescapable reality that the amended rule is clear on its face; it says what it says. To reject an arbitration decision, a party “must file a notice of rejection of the arbitration decision and request for trial in the same document,” and “[n]o action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision.” Fla. R. Civ. P. 1.820(h). That language is clear and unmistakable: both elements are required within the same filing. And in context, the rule’s steadfast use of the phrase “notice of rejection of arbitration decision and request for trial,” without ever once separating its elements, buttresses that plain reading. That phrase is the literal title of subsection (h), then the text reiterates it five times. *Id.*

For similar reasons, this Court—sitting en banc—found the old rule clear and unambiguous in its requirement for an unsatisfied party to “file a

motion for trial." *Lawnwood*, 394 So. 3d at 60. The Court rejected interpretations allowing for something other than "filing" the document, or for anything other than a "motion for trial," yet now the amended language is even more specific. It describes the two-pronged content of the document that "must" be filed, and it expressly rebuffs attempts at alternatives.

Likely for that reason, Judge Warner issued a concurring opinion in *Lawnwood* to note: "the recent amendment to Florida Rule of Civil Procedure 1.820(h) makes clear that a party must file a 'notice of rejection of the arbitration decision and request for trial in the same document' within twenty days of the arbitration proceeding." *Id.* at 64 (emphasis in original) (Warner, J., concurring). "And significantly, the rule now also provides that '[n]o action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision.'" *Id.* Although the amended rule had not been effective for the case at issue, and therefore did not control it, Judge Warner's concurrence concluded that the amendment "effectively overrules" cases allowing substantial compliance. *Id.*

That conclusion is sound because the amended rule is both clear and unmistakable. *Weston TC LLLP v. CNDP Mktg. Inc.*, 66 So. 3d 370, 375 (Fla. 4th DCA 2011) ("When a rule is clear and unambiguous, courts will not look behind the rule's plain language or resort to rules of construction to ascertain intent.") (citing *Daniels v. Fla. Dep't of Health*, 898 So. 2d 61, 64 (Fla. 2005)).

And even if it were not—even if the Court were to look beyond the plain text—the Civil Procedure Rules Committee's rationale confirms the same intent. In relevant part, the Committee stated: "In subdivision (h), the Committee proposes replacing the 'motion for trial' with a 'notice of rejection of arbitration decision and request for trial' and requiring that it be filed within 20 days of service of the arbitrator's written decision. This new timeframe will make it clear that unless the parties timely file a pleading that expressly rejects the arbitration decision, the decision will become final." (App.58) (emphasis added); see also *In re Amends. to Florida Rules of Civil Procedure*, 386 So. 3d 876, 878 (Fla. 2024) ("As to rule 1.820(h), we retitle the subdivision 'Notice of Rejection of the Arbitration Decision and Request for Trial' and amend it to clarify the process for rejecting an arbitrator's decision and requesting a trial de novo. Under the amended

rule, an arbitration decision will be deemed rejected only if a 'notice of rejection of the arbitration decision and request for trial' is filed with the court within 20 days of service of the arbitrator's written decision.").

The rule's requirements are patent, and all the above leads to one conclusion: rule 1.820(h) specifies the only way a party may reject an arbitration decision and request a trial, and the Hernandezes did not comply. The arbitration decision therefore became final by operation of law, and the trial judge had a nondiscretionary ministerial duty to enter judgment on it. He did not, so this Court should enter a writ of mandamus compelling that act.

II. The lower court had no valid reason to deny entry of judgment.

The trial judge did not dispute the Hernandezes' facial noncompliance with rule 1.820(h). Instead, his order simply cites—without elaboration or explanation—this Court's decision in *Vitesse, Inc. v. MAPL Associates LLC*, 358 So. 3d 437 (Fla. 4th DCA 2023). Regardless of the basis for that citation, it is misplaced for three reasons: (a) *Vitesse* predated the rule amendment; (b) the Court receded from *Vitesse* on the relevant issue; and (c) *Vitesse* is distinguishable on its controlling fact.

The *Vitesse* opinion is succinct. Following a non-binding arbitration, the trial court deemed an unelaborated "scrivener's error" in Vitesse's motion for trial de novo fatal to its compliance with rule 1.820(h). *Id.* at 438. On review, this Court relied on its *Nicholson-Kenny* precedent to state: "the intention of rule 1.820(h) is to send 'some notice to the opposing party that its adversary is rejecting an arbitration award and renewing its demand for trial.'" *Id.* at 439 (quoting *Nicholson-Kenny*, 932 So. 2d at 324). Elaborating that "[n]othing in rule 1.820 requires strict compliance regarding the form of the notice," the Court deemed Vitesse's filing—one which timely sought trial de novo and merely contained a scrivener's error—sufficient. *Id.* at 439–40.

That decision has no bearing on this case. The *Vitesse* Court was analyzing the pre-2024 version of rule 1.820(h) and, tellingly, doing so under its *Nicholson-Kenny* precedent that allowed for substantial compliance with the old rule.

Both of those things have changed. The Supreme Court amended rule 1.820(h) to require a specific form of filing while expressly prohibiting alternatives. At the same time, this Court receded from *Nicholson-Kenny*'s substantial compliance test in favor of a "bright-line" test tracking the rule. *Lawnwood*, 394 So. 3d at 60–62. When doing so, the Court directly

addressed *Vitesse* to explain: “to the extent we relied on Nicholson-Kenny’s ‘some notice’ rationale within Vitesse, we abandon that reliance after having receded from that rationale in the instant case.” *Id.* at 63.

Those differences aside, *Vitesse* does not grant trial judges the discretionary ability to forgive noncompliant filings, or to engage in a case-by-case analysis of substantial compliance. As noted above, the Court expressly receded from that notion. *Vitesse* did deal with the effect of scrivener’s errors—not a novel concept in the law—but that has no application here. The Hernandezes did not make a scrivener’s error, so *Vitesse* is distinguishable on its controlling fact.

A scrivener’s error is a written clerical slip or misprint, not an error in substance, law, or tactics. See, e.g., *Scrivener’s Error*, Black’s Law Dictionary, (12th ed. 2024) (“See clerical error”); *Clerical Error*, Black’s, supra (“An error resulting from a minor mistake or inadvertence and not from judicial reasoning or determination; esp., a drafter’s or typist’s technical error that can be rectified without serious doubt about the correct reading.”); *Ashley v. State*, 850 So. 2d 1265, 1268 n.3 (Fla. 2003) (defining scrivener’s error as a written clerical error that is not the result of a judicial determination or legal error); *Keller v. Belcher*, 256 So. 2d 561, 563 (Fla. 3d

DCA 1971) ("[C]lerical mistakes include only errors or mistakes arising from accidental slip or omission and not errors or mistakes in the substance . . . .").

Here, the Hernandezes issue was their omission of an entire element required by the rule. They did not misspell something or inadvertently transpose names or dates. They failed to heed the newly amended rule, and their counsel all but confirmed that legal error at the hearing by arguing compliance with the old standard was good enough. (App.79–80) (arguing substantial compliance with the trial de novo standard, not compliance with "the other rule that [People's Trust] is relying on").

Allowing the Hernandezes to deem such a substantive omission a "scrivener's error" would effectively eviscerate the rule. Parties could once again flout the rule's requirements, file anything they want—following a practice the *Lawnwood* Court expressly rejected—then claim their filing was "good enough" and correct it after the fact. See, e.g., (App.80) ("[A]nd we'd ask if Your Honor doesn't agree, allow us to amend to include that additional language if Your Honor would like.").

Litigants would once again be subject to uncertainty, wondering if any given filing was good enough, wondering whether it would later be

corrected, and wondering when that might occur or be allowed, all on a case-by-case basis and all involving additional litigation with discretionary rulings. The Court should not condone any view of the law where scrivener's errors and legal errors become indistinguishable. See *John Crescent, Inc. v. Schwartz*, 382 So. 2d 383, 385 (Fla. 4th DCA 1980) ("The law requires certain diligence of those subject to it, and this diligence cannot be lightly excused.").

CONCLUSION

The Hernandezes did not file a rule-compliant "notice of rejection of the arbitration decision and request for trial in the same document," so the trial judge was obligated—by both section 44.103, Florida Statutes, and Florida Rule of Civil Procedure 1.820(h)—to enter judgment on the arbitration decision. He did not, so this Court should issue a writ of mandamus compelling compliance with that ministerial duty.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing was filed with the Clerk using the Florida Courts eFiling Portal, which automatically serve a copy by email on the addresses designated by the following registered users, on December 19, 2024:

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CERTIFICATE OF COMPLIANCE

Under Florida Rule of Appellate Procedure 9.045(e), undersigned counsel hereby certifies this petition complies with the applicable font and word count requirements; it is in Arial 14-point font and does not exceed 13,000 words.

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